

SOLICITATION, OFFER AND AWARD			1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING	PAGE 1 OF 32 PAGES	
2. CONTRACT NO.		3. SOLICITATION NO. W911W625R0006		4. TYPE OF SOLICITATION [] SEALED BID (IFB) [X] NEGOTIATED (RFP)	5. DATE ISSUED 03 Jul 2025	6. REQUISITION/PURCHASE NO. 0012296018	
7. ISSUED BY ARMY CONTRACTING COMMAND (ACC) REDSTONE/CCAM-MZD-B BLDG 401 VICTORY BLVD FORT EUSTIS VA 23604-5577 TEL: FAX:				8. ADDRESS OFFER TO (If other than Item 7) See Item 7 TEL: FAX:			
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".							
SOLICITATION							
9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until _____ local time _____ (Hour) (Date)							
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.							
10. FOR INFORMATION CALL:		A. NAME PIERCE, LAURIE		B. TELEPHONE (Include area code) (NO COLLECT CALLS) (757) 878-2071		C. E-MAIL ADDRESS laurie.a.pierce2.civ@mail.mil	
11. TABLE OF CONTENTS							
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OFFER (Must be fully completed by offeror)							
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.							
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.							
13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)							
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):				AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFEROR		CODE	FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)		
15B. TELEPHONE NO (Include area code)		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. ☐			17. SIGNATURE		18. OFFER DATE
AWARD (To be completed by Government)							
19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION			
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()				23. SUBMIT INVOICES TO ADDRESS SHOWN IN		ITEM	
				(4 copies unless otherwise specified)			
24. ADMINISTERED BY (If other than Item 7)				CODE	25. PAYMENT WILL BE MADE BY		
26. NAME OF CONTRACTING OFFICER (Type or print)				27. UNITED STATES OF AMERICA		28. AWARD DATE	
TEL: EMAIL:				(Signature of Contracting Officer)			

Section E - Inspection and Acceptance

Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
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Section G - Contract Administration Data

Section L - Instructions, Conditions and Notices to Bidders

BAA LANGUAGE

Broad Agency Announcement (BAA) / Notice of Funding Opportunity (NOFO)
for
Aviation and Missile Research and Development (AMRD)

I. Basic Information

A. Federal Agency Name.

1. Issuing Agency: Army Contracting Command – Redstone Arsenal (ACC-RSA), Modernization Directorate, Fort Eustis, VA 23604-5577

2. Requiring Agency: U.S. Army Futures Command (AFC), Combat Capabilities Development Command (DEVCOM) Aviation & Missile Center (AvMC), Technology Development Directorate (TDD)

B. Funding Opportunity Title.

Aviation and Missile Research and Development (AMRD). For opportunities using the One-Step Solicitation process, ACC-RSA will publish a Call as a Special Notice providing a unique identification number and project title and will reference this Broad Agency Announcement (BAA) Notice of Funding Opportunity (NOFO). For opportunities utilizing the Two-Step process, an amendment to this BAA/NOFO will be published adding Attachment 5 which will include project name and other details.

C. Announcement Type.

This Announcement is a combined BAA/NOFO issued under Federal Acquisition Regulation (FAR) 35.016, Defense FAR Supplement (DFARS) 235.016, and Title 2 of the Code of Federal Regulations (C.F.R) § 200.204 (henceforth referred to as the “BAA” or “Master BAA”).

During the effective period of this BAA, the Government may issue Calls (One-Step process) and/or amend this BAA to add Attachment 5 NOFO (two-step process) and provide specific project details. BAA amendments and Calls will be published at <https://www.SAM.gov> and <https://www.grants.gov> and will reference this BAA. Interested parties are encouraged to periodically check SAM.gov and Grants.gov for amendments to the BAA and for Special Notices containing individual Call details.

Funding Opportunity Number.

W911W6-25-R-0006

D. Assistance Listing Number(s) (ALN).

1. The assistance listing numbers (found at <https://sam.gov/content/assistance-listings>) applicable to this BAA include:

12.431 – Basic Scientific Research

12.630 – Basic, Applied, and Advanced Research in Science and Engineering

2. The North American Industry Classification System (NAICS) Code anticipated to be applicable to FAR-based instruments awarded as a result of this BAA is 541715, Research and Development in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology).

F. Funding Details.

The funding opportunities published in Attachment 5 and/or Call(s) will identify the total amount of funding, number of anticipated awards, and range of expected individual award funding amounts. **This BAA is an expression of interest only and does not commit the Government to pay proposal or any other costs incurred from providing a response.**

Note: Any estimated funding amounts are not a promise of assured funding in that amount. Funding is uncertain and subject to change based upon Government discretion or fiscal constraints.

G. Key Dates.

This BAA is effective for a period of five years beginning on the date published in SAM.gov. BAA Calls and/or NOFOs provided in Attachment 5 may be issued at any time during the BAA effective period.

H. Executive Summary.

The purpose of this BAA is to solicit research concept papers and proposals and/or proposals from eligible applicants for funding consideration.

This BAA is intended to fulfill requirements for scientific study and experimentation directed toward advancing state-of-the-art technologies and/or increasing knowledge and understanding as a means of eliminating current technology barriers. This BAA identifies TDD research/exploratory development areas of interest and provides prospective applicant's information on the preparation of responses and evaluation factors.

When TDD requires a solution to a specific capability gap, ACC-RSA will either publish: (1) a Call requesting proposals; or (2) an amendment to this BAA providing Attachment 5 and requesting concept papers. The detailed procedures are described in attachments to this BAA (Attachment 1 "One-Step Process – Full Proposals" and Attachment 2 "Two-Step Process - Concept Papers").

The following are a list of key terms used in this BAA:

"Applicant" refers to the submitter of a concept paper or a proposal. The term "offeror" may be used interchangeably with "applicant".

"Concept paper" refers to an initial submission (five pages or less) in response to one of the funding opportunities detailed in Attachment 5 that solicits concept papers to address an Agency technology challenge.

"Submission" includes concept papers and proposals.

I. Agency Contact Information.

Applicable points of contact will be provided in each Call and/or Attachment 5.

II. Eligibility

A. Eligible Applicants.

This BAA does not restrict competition. This BAA is open to all responsible sources. Applicants may include single entities or teams from industry and academia.

1. List of Eligible Entity Types. Dependent upon the award instrument type, eligible applicants include institutions of higher education, nonprofit organizations, state and local governments, and for-profit organizations (i.e., large and small businesses).

2. Any Additional Restrictions on Eligibility Beyond the Type of Entity. Participation is limited to U.S. Firms as Prime Contractors; however, foreign owned entities can participate as subcontractors/recipients to U.S. prime contractors/recipient. The U.S. prime entity retains responsibility for compliance with U.S. export controls. Countries included in the U.S. State Department List of Countries that support Terrorism are excluded from participation. Interested entities must address export compliance of any foreign participants in its cost volume.

3. Eligibility Factors for the Principal Investigator (PI) or Project Director.

a. At a minimum, for other than basic research, the PI must be a U.S. Person.

b. Educational institutions offering fundamental research and that are selected for funding, will be subject to an Army Research Risk Assessment in accordance with Attachment 4. The Principal Investigator (PI) will be required to undergo a risk based security review and disclose all R&D projects currently under consideration from whatever source, and all ongoing projects, irrespective of whether support is provided through the proposing organization, another organization, or directly to the individual, and regardless of whether the support is direct monetary contribution or in-kind contribution (e.g., office/laboratory space, equipment, supplies, or employees) on which he/she is participating. The PI will be vetted in accordance with National Security Presidential Memorandum-33 (NSPM-33) requirements with implementation of Sec. 223 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2021 and Section 117 of the Higher Education Act (HEA) of 1965, as amended.

4. Criteria that would Make any Particular Projects Ineligible: To be addressed in each Call or Attachment 5 as applicable.

5. Any Funding Restriction Elsewhere in the NOFO. Some individual projects may have funding restrictions associated with them.

6. References/Links to Other Factors that would Disqualify a Submission.

a. SAM Registration and Unique Entity Identifier (UEI) requirements are applicable to all instruments. See Section V. paragraph A., subparagraph 1. for the SAM registration and UEI requirements. Failure to comply will disqualify a submission.

b. Risk Review is applicable to all instruments. Applicants selected for award who have been determined by the Government to be non-responsible, debarred, suspended, or otherwise unqualified are ineligible for award. See Section VII.D.

c. In accordance with statutory requirements of 10 U.S.C. 4021 any proposed research cannot duplicate research being done for another part of DoD.

7. Limit on the Number of Applications. The Government does not intend to limit the number of submissions allowed by an applicant.

B. Cost Sharing.

1. Required cost sharing. Some award instruments available through this BAA will require cost sharing. In the event that cost sharing is required, not committing to the required cost sharing will make the submission ineligible.

2. Cost Share Calculation. Cost sharing is defined as that portion of project costs not paid by Federal funds or contributions (unless authorized by Federal statute). The term includes matching, which refers to required levels of cost share that must be provided. See 10 U.S. Code §§ 4021 and 4022, 2 C.F.R. § 200.306, 32 CFR §§ 34.13 37.215, DoD Other Transactions Guide, and DoD Guide to Research Other Transactions.

3. Cost Share Restrictions. The applicant's accounting system must be adequate for determining costs applicable to the funding instrument. Control systems must be adequate to ensure that costs charged to Federal funds and those counted as the recipient's cost share or match are consistent with requirements for cost reasonableness, allowability, and allocability in the applicable cost principles and in the terms and conditions of the award. Appropriate Government surveillance during performance will provide reasonable assurance that efficient methods and cost controls are used.

4. Cost Share Commitment. When cost share is required, submissions must include verifiable commitments to meet the award instrument specific cost-sharing requirements. Cost sharing requirements vary by award instrument type. Applicants are responsible for investigating and committing to the appropriate portions of the proposed cost based on the proposed award instrument.

III. **Program Description.**

A. **General Purpose.**

The mission of the TDD comprises critical technology discovery and development programs, to include the development, maturation, demonstration and transition of critical technologies and products through technology programs and customer support for Future Vertical Lift (FVL), Air and Missile Defense, and Long-Range Precision Fires. Specifically, the mission of FVL programs is to modernize, maintain and sustain Army Aviation as the dominant land force aviation component in the world. The missions of the Missile Defense and Long-Range Precision Fires programs are to modernize, maintain and sustain Army Missile Technologies as a dominant component of the land force's precision strike, close combat, and air defense capabilities. This mission comprises critical technology discovery and development programs, to include Long-Range Precision Fires (LRPF) and hypersonic missiles, advanced launchers for Fires and Air Defense, close combat systems, and air defense systems including missiles, radars and fire control/mission planning, and also counter-Unmanned Aerial Systems (UAS) capabilities, that enable the Army to counter and defeat increasingly sophisticated threats in multi-domain operations. TDD accomplishes its mission by:

- Providing DEVCOM Aviation & Missile Center with resources and capabilities to support
- Army future Research and Development (R&D) Portfolio requirements
- Research and Development requirements from other customers
- Transitioning technology, products, and capabilities to customers as well as other organizations in the Center
- Enhancing complementary and integrated capabilities in areas of research and development, integration, prototyping, test, administration with other organizations
- Enhances Technology development and engineering activities to better meet the needs of the Warfighter
- Coordinating and collaborating on S&T efforts with Air Force, Navy, FAA, NASA, DARPA and other Government organizations
- Leading and participating in technology consortiums and programs for the advancement and sharing of technology

B. **Funding Priorities or Focus Areas.**

The following Technical Topic Areas (TTAs) are representative only. They are provided to help interested applicants understand the classes of needs and their potential scope:

- Design & Assessment
- Intelligent Teaming & Autonomy
- Avionics & Networks
- Open Architecture
- Launched Effects
- Power Generation & Management
- Drives, Structures & Rotors
- Human Systems Interface
- Survivability & Vulnerability
- Vehicle Management & Control
- Experimental/Computational Aeromechanics
- Acoustics
- Missile Seekers, Guidance, Navigation & Control
- Missile Materials & Structures
- Missile Propulsion, Warhead Integration & Fuzing
- Air Defense Sensors (Seekers & Radar) & Fire Control

C. **Program Goals and Objectives.**

To support TDD's mission in paragraph A and to meet the Government's needs in the topic areas listed in paragraph B of this section, when both a specific capability need is identified and funding is available, either a BAA Call and/or an amendment to this BAA providing Attachment 5 will be published. The specific topics, goal and objectives will be outlined specifically in the BAA Call and/or Attachment 5. TDD may also consider concept papers and/or proposals that may not directly align to the topics published but can demonstrate a strong alignment to TDD's focus areas.

D. Description of Award Contribution to Program's Goals and Objectives.

These specific topics should be viewed as suggestive, rather than limiting. TDD is always interested in considering other innovative research concepts of relevance to the Army if those concepts align with its mission. Calls and/or Attachment 5 will seek proposals and/or concept papers for scientific study and experimentation directed toward advancing the state-of-the-art or increasing knowledge or understanding for basic and applied research and that part of development not related to the maturation of a specific system or hardware procurement. Submissions related to the development of a specific system or to satisfy specific hardware/software requirements are not appropriate.

E. Performance Goals, Indicators, Targets, Baseline Data, Data Collection, and Other Outcomes.

When appropriate, performance goals, indicators, targets, baseline data, data collection, and other outcomes will be included in the BAA Call and/or Attachment 5.

F. Substantial Involvement of the Federal Agency (Cooperative Agreements).

Involvement of the Federal Agency will be predicated on and correspond to the statutes and regulatory guidance governing the funding instrument chosen. Subsection I includes a discussion of each funding instrument. Government involvement in the form of furnished information, equipment or other property will be negotiated on a case-by-case basis and as appropriate to the effort.

G. Program Specific Unallowable Costs.

The Government will not directly or indirectly reimburse unallowable costs as determined in accordance with applicable Federal statutes, regulations, the provisions of this part, or the terms and conditions of the Federal award.

H. Eligibility Criteria for Beneficiaries or Program Participants Other Than Federal Award Recipients.

This is not applicable to this BAA.

Citations for Authorizing Statutes and Regulations for the funding opportunity.

There are a variety of funding instruments available for award depending upon the effort proposed, the entity submitting responses, and statutory and regulatory requirements. The Army may choose to limit the award instrument to a specific type. Applicants should familiarize themselves with the various instrument types and the applicable regulations prior to submitting responses.

1. This BAA utilizes full and open competitive procedures in accordance with 10 United States Code (U.S.C.) § 3012(2)), using the competitive selection process in the selection of science and technology (S&T) proposals as implemented by the following:

- a. DFARS 206.102(d) and DFARS 206.102-70 for FAR-based instruments
- b. Merit-based, competitive procedures provided in 32 C.F.R. § 22.315 for the award of assistance instruments governed by the DoD Grants and Agreement Regulations (DoDGARs).
- c. Other Transactions as authorized by 10 U.S.C. § 4021, transactions for basic, applied, and advanced research, and § 4022, transactions for prototype projects, as provided in the Office of the Under Secretary of Defense for Research and Engineering Guide to Research Other Transactions Under 10 U.S.C. 4021 and Office of

the Under Secretary of Defense for Acquisition and Sustainment Other Transaction Guide (version 2.0 dated July 2023 or most recent version).

2. Statutes and Regulations that apply to the award instruments that may be awarded as a result of submission to this notice are as follows:

a. Assistance Instruments. The applicable regulations governing assistance instruments include 2 CFR Part 200, “Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards,” as implemented by 2 CFR Chapter XI, Subchapter A and the DoD Grants and Agreements Regulations (DoDGARs). The assistance instruments include grants, cooperative agreements, and Technology Investment Agreements (awarded as a cooperative agreement under 32 CFR § 37), as described below:

(1) Cooperative agreements: 31 U.S.C. § 6305, 15 U.S.C. § 3710a, 2 CFR § 1128.325, 32 CFR Parts 21, 22, 26, 28 and 34. Please refer to the DoD Grants and Agreements Regulations at <https://www.ecfr.gov/current/title-32/subtitle-A/chapter-I/subchapter-C>.

(2) Technology Investment Agreements (TIAs) (awarded as a cooperative agreement): 31 U.S.C. § 6305, 15 U.S.C. § 3710a, 2 CFR § 1128.325 and 32 CFR Parts 21, 22, 26, 28 and 37. Please refer to the DoD Grants and Agreements Regulations at <https://www.ecfr.gov/current/title-32/subtitle-A/chapter-I/subchapter-C>.

(3) Grants: 31 U.S.C. § 6304 and 2 CFR § 1128.325 and 32 CFR Parts 21, 22, 26, 28 and 34. Please refer to the DoD Grants and Agreements Regulations at <https://www.ecfr.gov/current/title-32/subtitle-A/chapter-I/subchapter-C>.

b. Other Transaction (OT) Agreements for Prototype Projects (OTAPs): 10 U.S. Code § 4022. Please refer to the Office of the Under Secretary of Defense for Acquisition and Sustainment Other Transaction Guide (version 2.0 dated July 2023 or most recent version) for additional information at <https://www.acq.osd.mil/asda/dpc/cp/policy/other-policy-areas.html>

c. OT Agreements for Research (OTARs): 10 U.S. Code § 4021. Please refer to the Office of the Under Secretary of Defense for Acquisition and Sustainment Other Transaction Guide (version 2.0 dated July 2023 or most recent version) for additional information at <https://www.acq.osd.mil/asda/dpc/cp/policy/other-policy-areas.html>.

d. FAR-Based Instruments (Procurement Contracts): 31 U.S. Code § 6303, 48 CFR Parts 1 through 53 (specifically parts 6, 16, 35 and 42), and its DoD and Army Supplements. Please refer to the FAR, DFARS, and AFARS at www.acquisition.gov.

IV. Application Contents and Format.

A. Content and Format Requirements.

1. Pre-applications and letters of intent are not of value to the Government for the anticipated selections.
2. The application as a whole: Applicant submissions should reflect the Applicant’s/Officer’s understanding of the requirement. It should contain enough detail to inform the Government in its selection process. Advertisement of past accomplishments are not of value to the Government unless the proposed solution is directly related to it. The submissions should be clear and concise.
3. Component pieces of the application. See Attachments 1 “One-Step Process – Full Proposals” and 2 “Two-Step Process - Concept Papers”. Attachment 3 “Proposal Instructions” contains the proposal instructions common between the One-Step and Two-Step Process.
4. Information that successful applicants must submit after notification of intent to make a Federal award but prior to a Federal award. Prior to award, successful entities will be expected to provide requisite evidence of compliance, certifications and other information to comply with the statutes and regulations applicable to the award instrument type.

- **Other Requirements.**

1. Page number limitations for submissions: One-Step Process (see Attachment 1) and Two-Step Process (see Attachment 2).

2. Formatting requirements. All submissions will adhere to the following format requirements:

- Font style and size. Arial font style is preferred; however, Times New Roman style will be accepted. Font size will be no smaller than 10-pitch.
- Spacing. Single/normal spacing
- Margins. No less than one-inch margins
- Paper size. 8.5-by-11-inch paper will be considered one page. For page count purposes, larger pages will be considered more than one-page.
- Color limitations. None

- 3 . File Naming, File Size Limitations, or File Format.

- a. File Size Limitations. All submissions will be electronic files and not exceed 10 MB.

- b. File Format. All submissions shall be in portable document format (PDF). All electronic proposal submissions shall be MS 365 compatible or Adobe Acrobat Pro Document Cloud (DC) and virus free. Do not provide self-extracting archive files (e.g., zip files). Macros, movies, or sound files shall not be used in any part of the submissions. If files contain links, the links must be intact and maintained through all revisions. Files shall not be read/write/ password protected (i.e., must be unlocked, non-password protected, and/or unprotected). Perform a virus check before submitting. If a virus is detected, it may cause rejection of the file.

4. Paper Submissions. Paper/hardcopy submissions will not be accepted.

5. Submission Sequence. Submission sequences are included in Attachment 1 “One-Step Process – Full Proposals” and Attachment 2 “Two-Step Process - Concept Papers” to this BAA.

6. Signature requirements. The Official Transmittal Letter is an official transmittal letter with authorizing official signature. Additionally, the signature and title of an authorized representative of the entity will be on the cover page of both volumes of submitted proposals. If multiple organizations are participating, one signature from the principal/leading organization is acceptable.

7. Third-Party Information. Any requirements for third-party information such as references, letters of support, or letters of commitment to the project or to contribute to cost sharing will be included in the BAA Call and/or Attachment 5 if applicable.

8. Support of eligibility Determination. If applicable, the requisite documentation to support eligibility determination required by the Government will be included in the BAA Call and/or Attachment 5 as applicable.

9. Narrative Instructions. Instructions needed to develop the narrative portions of the submissions are included in other portions of this BAA. Any additional requirements for its order, format, or required headings will be included in the BAA Call and/or Attachment 5 as applicable.

10. Proprietary Information Identification. Submissions in response to this BAA will not be returned to the applicant. It is the policy of the Government to treat all proposals as sensitive, competitive information and to mark and disclose their contents only for the purposes of evaluation. It is the intent of the Army to treat all submittals as procurement sensitive and to disclose their contents with a Government evaluation panel for the purpose of evaluation. Additionally, the Government may use select non-Government contracted support/personnel to assist in the evaluation and administrative handling of responses. These persons are bound by appropriate non-disclosure agreements and organizational conflict of interest statements regarding proprietary and source selection information. Non-Government advisers are limited to providing technical advice to the Government and are

prohibited from making recommendations for selection. Submissions under this BAA constitute the applicant's acknowledgement and consent to use of non-Government personnel during the evaluation process. Applicants are expected to appropriately mark proprietary and/or export-controlled information contained in their submissions.

V. Submission Requirements and Deadlines.

A. Address to Request Application Package.

In addition to this BAA and its attachments, BAA Calls and/or any requests for proposal will contain any specific information required to be provided with submissions to include, but are not limited to, the following:

- Instructions on how to access supplemental information, if applicable.
- An email address and telephone number of the cognizant Contracting Office POC
- Mailed submissions will not be accepted.

B. Unique Entity Identifier (UEI) and System for Award Management (SAM.gov).

1. Each applicant/Offeror submitting a response under this BAA (unless the applicant is exempt from those requirements under 2 CFR 25.110(c)) or has an exemption approved by the Federal awarding agency under 2 CFR 25.110(d)) (applicable to assistance instruments) or is exempt from requirements under FAR Part 4.1102 for FAR-based instruments) is required to:

a. Provide a valid UEI in its submission. The accuracy of the UEI in SAM at <https://www.sam.gov> should be verified before any submission.

b. Be registered in SAM prior to submitting its submission; and

c. Maintain an active SAM registration with current information at all times during which it has an active Federal award or an application or plan under consideration by a Federal awarding agency.

2. The Federal awarding agency may not make a Federal award to an applicant until the applicant has complied with all applicable UEI and SAM requirements. If an applicant has not fully complied with the requirements by the time the Federal awarding agency is ready to make a Federal award, the Federal awarding agency may determine that the applicant is not qualified to receive a Federal award and use that determination as a basis for making a Federal award to another applicant.

C. Submission Instructions.

For projects using the Two-Step process, once Government adds the project to Attachment 5, interested offerors can submit concept papers. Calls will include submission instructions within the Call.

D. Submission Dates and Times.

Submission dates and times will be provided in the Call and/or Attachment 5 as applicable. Concept papers or proposals received after the specified due date and time shall be governed by the provisions of FAR 52.215-1(c)(3).

E. Intergovernmental Review.

This is not applicable. This BAA is excluded from coverage under Executive Order (E.O.) 12372, "Intergovernmental Review of Federal Programs."

VI. Submission Review Information.

A. Responsiveness Review.

1. The Government Contracting Office will review submissions before forwarding submissions to the requiring activity. If a submission is disqualified based on the factors in subsection 2 below, that submission will not be forwarded to the requiring activity for consideration. Submissions not adhering to the page length limitations will be truncated to remove the pages beyond the required page length before they are sent for evaluation. The submitting entity will be notified of either occurrence.

2. Disqualifying factors include:

- a. Submissions not signed by a cognizant and responsible person.
- b. Submission not adhering to the instructions in this BAA, its attachments and the BAA Call.

B. Review Criteria.

The Government will not evaluate concept papers or proposals against each other because applicants will not submit these in accordance with a common work statement. Additionally, the Government reserves the right to select for award any, all, or part of a proposal received. When using the two-step process, the Government request for a full proposal does not imply the Government has made a final funding decision. The Government reserves the right to award to a lower rated proposal based upon consideration of balancing research and development investment across the overall Government research and development projects portfolio.

1. Each criterion and description of those criteria that will be used to evaluate submissions are included in Attachments 1 “One-Step Process – Full Proposals” and 2 “Two-Step Process - Concept Papers” to this BAA. These criteria may be altered and/or sub-criterion may be added to better suit a particular requirement.

2. Attachments 1 “One-Step Process – Full Proposals” and 2 “Two-Step Process - Concept Papers” include the order of importance applied to the criteria for proposal and concept paper submissions respectively. Although it is not likely, the order of importance may be altered to better suit a requirement. If a different order of importance is included in the BAA Call, the order of importance in the BAA Call will be applied to the criteria during the evaluation.

3. Unless specified in the BAA Call and/or Attachment 5 as applicable, there are no additional statutory, regulatory, or other preferences that will affect the results of the evaluation.

4. Other than the requisite cost sharing explained in Section II, Paragraph B that will affect the eligibility of a submission based on the award instrument, cost sharing will not be considered in the evaluation.

5. Applicants will not be permitted to nominate reviewers of their applications. The Government will not disclose the reviewer information. However, the reviewers will be required to document any potential conflict of interest.

C. Scientific Peer Review and Selection Process.

1. Government evaluation and selection will be conducted by Peer or Scientific Review as discussed in FAR 35.016 and FAR 6.106.

2. A brief description of the merit review process is provided in Attachments 1 “One-Step Process – Full Proposals” and 2 “Two-Step Process - Concept Papers” and includes how merit review outcomes will be used in final decision-making.

D. Risk Review/Rating.

1. The Government is required to review and consider performance and integrity information about the Applicant that is in SAM.gov prior to making an award that exceeds the simplified acquisition threshold (currently \$250,000) over the period of performance. This risk review is required by 31 U.S.C. 3321 and 41 U.S.C. 2313 and includes both public and non-public information. For assistance instruments, an Applicant must meet the standards at 32 CFR 22.415 to be qualified and responsible, which includes: 1) management capability and adequate financial

and technical resources to execute the program of activities envisioned under the instrument; 2) satisfactory record of executing such programs or activities (if a prior recipient of an award); 3) satisfactory record of integrity and business ethics; and 4) be otherwise qualified and eligible under applicable laws and regulations. Similarly, Applicants for FAR-based instruments must be determined responsible and qualified based on the requirements in FAR Subpart 9, Responsible Prospective Contractors, which has similar requirements.

2. Because the anticipated awards are expected to exceed the simplified acquisition threshold during the period of performance, the Government will assess the applicants' integrity, business ethics, and record of performance under Federal awards when completing the review of risk posed by applicants as described in 2 CFR § 200.205 for assistance instruments and FAR 9.104-6 for contracts. Therefore, the following applies:

c. In accordance with 41 U.S.C. 2313, Database for Federal agency contract and grant officers and suspension and debarment officials, the Government will review and consider any information about applicants that is in the responsibility/qualification records available in SAM.gov

d. Applicants may review and comment on any information about themselves that a federal awarding agency previously entered in the designated integrity and performance systems accessible through SAM.gov.

e. Applicants are requested to provide information with its submission to assist the Contracting, Grants or Agreements Officer's evaluation of responsibility. The Government will consider any comments by the applicant, in addition to the other information in SAM.gov, in making a final determination.

VII. Award Notices.

A. Selection Notifications.

Selection notifications will be issued as described in Attachments 1 "One-Step Process – Full Proposals" and 2 "Two-Step Process - Concept Papers". These notifications will be separate notices to inform applications of selection status and may provide instructions for further consideration. Receipt of such notification is not an authorization to begin performance. The Federal award is the authorizing document.

B Pre-Award Costs.

Unless otherwise stated, pre-award costs are not allowable. No entitlement to payment of direct or indirect costs or charges by the Government will arise as a result of submission of responses to the BAA and the Government's use of such information.

C. Notice of Federal award.

The Federal award/funding instrument signed by the Contracting, Grants or Agreements Officer, as appropriate, is the official document that obligates funds and will be provided by electronic means to the business POC listed on the cover page of the proposal.

D. Notifications to Unsuccessful Applicants.

Notifications to unsuccessful applicants will be done in accordance with Attachments 1 "One-Step Process – Full Proposals" and 2 "Two-Step Process - Concept Papers" to this BAA.

VIII. Post Award Requirements and Administration.

A. Administrative and National Policy Requirements.

1. Contract Awards. Contract awards will be governed by the applicable FAR and DFARS clauses addressing administrative and national policy requirements that will be incorporated into the resultant contract. During the negotiation process, potential awardees will be provided a copy of the draft contract prior to award.

2. Assistance Instruments. All assistance instruments awarded under this BAA will be governed by the DoD Research and Development (R&D) General Terms and Conditions (T&Cs) located at: <https://www.nre.navy.mil/work-with-us/manage-your-award/manage-grantaward/grants-terms-conditions>. The DoD R&D General T&Cs implement the Office of Management and Budget (OMB) guidance, "Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards," published in the CFR at 2 CFR § 200 and implemented by DoD at 2 CFR Part 1104, "Implementation of Governmentwide Guidance for Grants and Cooperative Agreements." The R&D General T&Cs include both administrative and national policy requirements. Awards under this BAA will incorporate the most recent version of the DoD R&D Terms and Conditions at the time of award.

3. Applicable to all Awards other than fundamental research. Export Control Laws. Awardees must comply with all U.S. export control laws and regulations implementing the "Arms Export Control Act", including the International Traffic in Arms Regulations ("ITAR" at 22 C.F.R. 120-130) and the Export Administration Regulations ("EAR" at 15 C.F.R. 730-774). In some cases, developmental items funded by the Department of Defense are now included on the United States Munition List (USML) and are therefore subject to ITAR jurisdiction. The USML is available online at <https://www.ecfr.gov/current/title-22/chapter-I/subchapter-M/part-121>. If the effort is subject to export control, any research and development projects that do not qualify as fundamental research, applicants must submit a certified DD Form 2345, Militarily Critical Technical Data Agreement, with submission. Further details and instructions will be provided in individual BAA Calls. Awardees shall be responsible for obtaining any required licenses or other approvals, or license exemptions or exceptions, if applicable, for exports of hardware, technical data, and software (including deemed exports), or for the provision of technical assistance.

B. Post-Award Reporting.

Assistance Instruments. Awards for assistance instruments under this BAA require the submission of several mandatory post-award reports which are generally identified as deliverables in the award document. The reporting requirements will be mutually agreed before award. However, at a minimum, the mandatory post-award reports include the following:

- A Final Technical Performance Report. Final reports must be cumulative (i.e., each final report should cover the entire period of performance under the award and not just the period since the previous interim performance report). The primary purpose of the final report for a research award is to document the "overall project or program well enough to serve as a long-term reference from which others may understand the purpose, scope, approach, results or outcomes, and conclusions or recommendations of the research." 2 CFR § 1134.110(b)(2). The final technical report is required to be also filed electronically to the Defense Technical Information Center (DTIC).
- Final financial report using the Federal Financial Report, SF-425, is required to be submitted no later than 120 calendar days after the end date of the period of performance. (2 CFR Part 1134).
- Final report listing all subject inventions made under the award, or stating that there were none, is required to be submitted NLT 120 calendar days after the end date of the period of performance unless the Recipient requests, and the Government grants an extension to the due date. (2 CFR Part 1134).
- Annual Inventory of Federally Owned Property is required to be submitted on an annual basis (if applicable). (2 CFR Part 1134).

Procurement Contracts. The award document will detail the required post-award reports identified as deliverables, Contract Data Requirements List(s) (CDRL), DD 1423, attached as an Exhibit to the contract. The DD 1423 addresses the deliverable type, frequency, format, and submission requirements. The deliverables shall be prepared and submitted in accordance with instructions in the DD 1423 and mutually agreed upon before award. Typical deliverables for S&T efforts include monthly financial status reports, interim and final scientific/technical reports, briefing materials, test data, and others as required.

Applicable to All Awards. The reports that are delivered in connection with awards under this BAA may be available to subsequent acquisition efforts, subject to applicable data rights. The types of reports, frequency, and submission instructions will be specified in the award document.

Procurement Contracts and Assistance Awards. As required by Appendix XII to 2 CFR 200, "Reporting of Matters Related to Recipient Integrity and Performance" of the Uniform Guidance and FAR 9.104-6, awardees/recipients are required to report in the responsibility/qualification records in SAM.gov (formerly Federal Awardee Performance & Integrity Information System (FAPIS)) any information about criminal, civil, and administrative proceedings, and/or affirm that there is no new information to provide. This applies to awardees/recipients that receive federal awards (currently active grants, cooperative agreements, and procurement contracts) if the value exceeds \$10,000,000 from all federal agencies for any period of time during the period of performance of an award/project.

IX. Other Information.

Additional Requirements.

1. Scope. Research resulting from work executed as a result of an award under this BAA may lead to an additional requirement for continued research or development being provided by the applicable contractor or recipient in support of testing and development to evaluate the measures of merit and performance enhancement capability. However, it is not possible at the time of release of this announcement, or at the time of award of the funding instrument, to accurately anticipate if these additional efforts will be required or if it is possible to anticipate the level of effort required. In addition, the technology explored under this BAA typically has application across the various branches of the DoD. In order to satisfy the unique needs of these different branches and to ensure a proper job is done in the evaluation of the applicable technology, award instrument modifications which add new Contract Line Item Numbers (CLINs) and/or expand on current CLINs for additional efforts providing flexibility in technology assessment (with technology transition as the ultimate goal) may be executed. In the event that this is required, it shall be considered to be within the scope of this BAA and the resulting award instrument, and, therefore, will have met the requirements of the FAR, DoD FAR Supplement DFARS and the Competition in Contracting Act (CICA). The benefit of this flexibility to the Government and ultimately the taxpayer is a significant increase in the R&D return on investment. The flexibility to have multiple users (branches of the military) in the technology evaluation cycle is critical and allows systems and technologies to be developed in a manner that has broader DoD market applications. These can then be modularly reconfigured to meet goals and objectives for all DoD branches.

2. Government Furnished Data, Equipment, Property, or Facilities. If the Government identifies Government data, equipment, property, and/or facilities that are required for successful performance, such data, equipment, property, and/or facilities will be addressed in the BAA Call and/or Attachment 5 if applicable. Otherwise, it is the applicant's responsibility to identify, coordinate, and furnish supporting documentation in the proposal for the use of any Government furnished data, equipment, property, or facilities.

3. Order of Precedence. Any inconsistency in this BAA and any BAA Call issued hereunder shall be resolved by giving precedence to the BAA Call.

4. Protest. An interested party who objects to the terms specified within this BAA solicitation or any BAA Call issued hereunder may submit a protest in accordance with FAR Part 33 to either: (1) electronically to the Contracting, Grants or Agreements Officer identified in the BAA Call; (2) electronically to the Agency (contact the Contracting Office Contracting, Grants or Agreements Officer for submission address); OR (3) electronically to the Government Accountability Office (GAO) – with an electronic copy submitted to the Contracting, Grants or Agreements Officer identified in the BAA Call. Applicants are advised that a request for an independent review at a level above the Contracting, Grants or Agreements Officer is available as an appeal of a Contracting Officer decision in accordance with FAR 33.103(4). Applicants are reminded that this BAA and any BAA Call issued hereunder are issued in accordance with FAR 35.016 and not under FAR Part 15. Protests based on alleged improprieties in this BAA solicitation or any BAA Call issued hereunder shall be filed prior to the closing date for receipt of proposals. GAO only has bid protest jurisdiction over awards in the form of procurement contracts subject to 48 CFR Chapters 1 and 2.

5. Contract Award by Agencies Other Than Army Contracting Command. The Government puts potential applicants on notice that other contracting offices besides Army Contracting Command - Redstone Arsenal may negotiate and ultimately award funding instruments under this BAA. These other federal entities may include: Air

Force Research Laboratory (AFRL), Air Force Life Cycle Management Command, Naval Research Laboratory, Naval Research Office, Naval Air Systems Command (NAVAIR), and United States Special Operations Command (USSOCOM). Consequently, resultant funding instruments may require additional agency specific clauses and requirements.

6. THIS BAA consists of the following documents:

- W911W6-25-R-0006 BAA/NOFO General Terms
- ATTACHMENT 1 – One Step Process
- ATTACHMENT 2 – Two Step Process
- ATTACHMENT 3 – Proposal Instructions
- ATTACHMENT 4 – Army Research Risk Assessment Program (ARRP)
- ATTACHMENT 5 – Project Description/NOFO (BAA is amended to add a new Attachment 5 each time a project and funding is identified)

ATTACH 1 ONE STEP

ATTACHMENT 1 One-Step Process – Proposal Submission

The Government will initiate the One-Step Process by posting a Call to SAM.gov and Grants.gov identifying the Government's specific research area of interest. Interested sources may submit proposals electronically in accordance with the proposal instructions at Attachment 3 using the Solicitation Module within the Procurement Integrated Enterprise Environment (PIEE) (<https://piee.eb.mil/>).

Proposals will not be evaluated against each other, because a common work statement will not be provided. After receipt of proposals, the Government may elect to have a dialogue with an individual applicant to:

- Resolve minor or clerical errors;
- Obtain understanding of past performance information, including information from the Contractor Performance Assessment Reporting System (CPARS), other relevant projects that the Government has past performance information, or to allow the applicant to respond to adverse past performance information that the applicant has not previously had an opportunity to respond; or
- Ask questions to enhance the Government's understanding of the proposal; allow reasonable interpretation of the proposal; or facilitate the Government's evaluation of the proposal.
- The Government may use the information collected as part of any such dialogue in evaluation of the proposal. The Government will not use the information to cure proposal deficiencies or material omissions, materially alter the technical or cost elements of the proposal, and/or otherwise revise the proposal.

EVALUATION INFORMATION

The Government will evaluate proposals in accordance with the evaluation criteria stated below using a scientific peer review process. Individual Calls may change or substitute criteria as necessary. Offerors are cautioned to review the individual Calls. The Government anticipates receiving proposals with varying technical/scientific approaches. During proposal evaluation, the Government may determine that the complete or only a portion(s) of the proposal addresses the research and development project objectives. Each proposal will be determined as either Category I, II or III as explained below.

Technical Evaluation Criteria

The Government will use the following criteria, listed in descending order of relative importance, when evaluating proposals.

Criterion I: The extent to which the proposed effort satisfies the Army research need by use of innovative, efficient, affordable, and suitable solutions to the stated technical objective.

Criterion II: The merit of the proposed approach (including reasonableness of the proposed tasks and schedule) to accomplish the scientific and technical objectives to include offered data rights.

Criterion III: The capability of the Offeror to accomplish the proposed effort, which includes suitability and availability of personnel, facilities, and any necessary data, as well as past performance. The Government may use several methods to evaluate past performance, including evaluator knowledge of an applicant's particular past performance as long as there is sufficient documentation which can support their position.

Cost/Price Criteria

The Government will evaluate the proposed cost to determine reasonableness and affordability to the Government; this includes the realism of the proposed cost and any proposed cost share to include:

- Whether the proposed costs are realistic for the technical and management approach and accurately reflect the technical goals and objectives.
- Whether the proposed costs demonstrate an understanding of the costs and level of effort needed to successfully accomplish the proposed technical approach.
- Whether the costs, to include subawardees, are substantiated by the details provided in the proposal (e.g., the type and number of labor hours proposed per task, the types and quantities of materials, equipment and fabrication costs, travel and any other applicable costs and the basis for the estimates).

Review Criteria Order of Importance

Technical Evaluation Criteria is more important than Cost/Price Criteria.

The Government reserves the right to award to a lower rated proposal based upon consideration of balancing research and development investment across the overall Government research and development projects portfolio.

The Government reserves the right to select for award all, some, or none of the proposals received in response to each Call.

Evaluation Standards & Terms

To assist offerors in understanding the Government evaluation results, the Government Scientific review organization (SRO) will use the following definitions in its assessment of proposals.

Technical Criteria:

Exceptional.

Exceeds most but meets all other specified performance or capability criteria in a beneficial way to the DoD; has a high probability of satisfying the requirement; offers significant technical innovation or meritorious approach.

Good.

Meets most and exceeds some specified performance or capability criteria; has good probability of satisfying the requirement; offers some technical innovation or sound approach.

Acceptable.

Meets specified performance or capability criteria; has acceptable probability of satisfying the requirements; approach offers some degree of technical innovation and/or reasonable approach.

Marginal.

Fails to meet some specified performance or capability criteria; has low probability of satisfying the requirement; affords little innovation and takes an approach with little merit.

Unacceptable.

Fails to meet most or all specified performance or capability criteria and thus is deemed incapable of satisfying the requirement; contains one or more major deficiencies that would require a major revision to the proposal to make it correct.

The cumulative effect of numerous weaknesses may result in the proposal being assigned one or more minor deficiencies. The cumulative effect of numerous minor deficiencies may result in the proposal being assigned a major deficiency. In other words, while the individual deficiencies may be correctable, the deficiencies are so numerous and extensive as to require the offeror to essentially re-propose.

Risk Ratings

The Government will assign each proposal an overall risk rating based upon an integrated assessment of the risk of successful performance. In the event a proposal evidences an underestimation of the cost of performance, this will be addressed as part of the technical risk rating.

High – Likely to cause serious disruption of effort or increase in cost/price of performance even with special contractor emphasis and close Government monitoring.

Moderate – Has some potential to cause minor disruption of effort or increase in cost/price of performance. Normal Government monitoring will probably be able to overcome most difficulties.

Low – Has little potential to cause disruption of effort or increase in cost/price of performance. Normal Government monitoring will probably be able to overcome difficulties.

Additional Evaluation Term Definitions:

“Strength” is a feature, item; technique or methodology which stands out as a significant benefit to enhance the effective execution of the program.

“Weakness” is a feature, item, technique or methodology that detracts from the proposal merit. Ambiguities or omissions found within the proposal are weaknesses when the uncertainty or lack of information presents doubt concerning the likelihood of meeting the performance objectives. A weakness has no substantial impact on cost, schedule, or technical approach.

“Deficiency” is any part of the offeror’s proposal that does not meet an objective stated in the announcement. A “minor deficiency” can be corrected through negotiation, and will may result in changes to cost, effort, schedule or approach. A “major deficiency” is a major item and/or gross omission that will preclude meeting objectives and/or will result in substantial impact on areas of cost, effort, and schedule.

“Clarification/Negotiation Issue” addresses any part of the offeror’s proposal that could be improved or corrected through interchanges or discussions to either ensure mutual understanding or to affect the best possible performance and optimum terms in the award instrument.

Proposal Categories:

Category I: Well-conceived, scientifically or technically sound proposals pertinent to program goals and objectives with applicability to DoD mission needs and offered by a responsible offeror with the competent scientific and technical staff and supporting resources needed to ensure satisfactory program results. Proposals in Category I are recommended for acceptance and funding is available.

Category II: Scientifically or technically sound proposals that may require further development and can be recommended for acceptance but are at a lower priority than Category I. Proposals in this category are not always funded.

Category III: Proposals which are not recommended for funding for the call under consideration.

Notification to Offerors of Evaluation Findings

Once the proposal evaluation process is complete, offerors will be notified in writing, of selection or non-selection. Offerors not selected for an award may request feedback regarding the evaluation findings of submitted proposals. A written request to the Contracting Officer must be received within three calendar days after receipt of notification of non-selection.

ATTACH 2 TWO STEP

ATTACHMENT 2 Two-Step Process - Concept Papers

Step One:

The Government will initiate the Two-Step Process by amending the BAA and adding a research and development project to Attachment 5. Interested sources will submit Concept Papers electronically using the Solicitation Module within the Procurement Integrated Enterprise Environment (PIEE) (<https://piee.eb.mil/>).

Offerors will use the following format for the Concept Papers, subject to any changes in Attachment 5 for the specific research and development project:

Section A: Cover Page. This section is one page and includes the BAA number and Title of Research and Development Project name from Attachment 5, Name of Company, Business Size, Company's Commercial and Government Entity (CAGE) number, Unique Entity Identifier (UEI) number, Contracting and Technical POC. Offerors will not include any other information on the Cover Page.

Section B: Research Project Description. This section is limited to five single-sided 8 ½ x 11-inch typed pages (including charts, graphs, photographs, etc.) in 12-point font. Offerors shall include a discussion of the nature and scope of the research project and the proposed technical approach/solution including identification of major technical risks with defined feasible risk mitigation efforts. It may also include any proposed deliverables. Pages in excess of the five-page limit will not be read or considered.

Section C: Rough Order of Magnitude (ROM) Cost. This section is limited to one page and provides a ROM cost estimate. A ROM cost is a quick, broadly scoped cost estimate that is typically completed when few details exist on a specific effort.

Based upon the following **Review Criteria**, the Government will categorize Concept Papers as either **“Of interest”** or **“Not of interest”**:

- (1) Technical merit of the proposed concept with an emphasis on feasible, achievable, and innovative solutions to achieve the project objectives;

- (2) the degree to which a defined transition path or strategy to a capability exists; and
- (3) the degree to which the proposed schedule is achievable and affordable based upon the ROM cost estimate.

The Review Criteria are of equal importance.

During the Government review of Concept Papers, the Government evaluators may elect to ask questions of individual offerors to enhance the Government's understanding of and to facilitate the Government's evaluation of the Concept Paper. The Government evaluator questions may be communicated either via the Government version of Microsoft Teams or by electronic mail.

Step One concludes with the Government Contracting Officer/Agreements Officer notification to Offerors that either:

- The Concept Paper is "Of Interest" and will continue into Step Two; or
- The Concept Paper is "Not of Interest" with rationale for the decision. For "Not of interest" Concept Papers, this will end Government consideration of the Concept Paper.

Step Two: Applicable only to Concept Papers Determined "Of-Interest"

The Government Contracting/Agreements Officer will initiate Step Two, by sending a request for proposal to those Offerors whose Concept Papers are "Of interest". During Step Two, all communications between the Government and the Offeror will be through the Government Contracting/Agreements Officer. The Government reserves the option to request proposals for all or a portion of the proposed research project. A request for proposal does not imply the Government has made a final funding decision.

Proposals shall be submitted in accordance with Attachment 3 and are due by the date specified in the request.

The Government will evaluate the proposal using the criteria from Step One substituting the cost proposal for the ROM cost estimate to determine if the proposed cost is reasonable and realistic. After an initial evaluation of the proposal, the Government may elect to conduct discussions with the Offeror to confirm proposal details; for example, discussions concerning the Offeror's detailed statement of work for the project, and/or address proposal ambiguities.

At the conclusion of discussions if applicable, the Government will **categorize the proposal** as one of the following:

"Of Interest" and funding is available; or

"Of Interest", but funding is not available. Government will ask offeror to extend the proposal validity period in event funding becomes available; or

"Not of Interest" and the Government does not intend to fund the proposal.

The Government will also consider program balance/diverse technologies in making decisions on proposals "Of Interest".

ATTACH 3 PROP INSTRUCTIONS

ATTACHMENT 3 Proposal Instructions

The following proposal instructions are common to proposals submitted either under the one-step or two-step process. For the two-step process, offerors/applicants shall only submit a proposal upon notification by the Contracting or Agreements Officer that the Government has categorized the offeror's Concept Paper as "Of Interest".

Offerors will prepare proposals as two volumes (unless otherwise specified in the BAA Call for the one-step process or per Government direction in the request for proposal for the two-step process) with the following standard organization:

Volume 1: Technical Proposal:

The Technical Proposal shall be submitted as a separate electronic file and organized as follows to facilitate Government evaluation:

Cover Page: This shall include the words “Technical Proposal” and include the following:

- BAA number;
- Call number;
- Title of proposal;
- Identity of prime Applicant and complete list of subcontractors, if applicable;
- Technical point of contact (name, address, phone, electronic mail address);
- Administrative/business point of contact (name, address, phone, electronic mail address);
- Duration of effort (separately identify the basic effort and any options if applicable); and,
- The signature and title of an authorized representative of the entity submitting the proposal. If multiple organizations are participating, one signature from the principal/leading organization is acceptable.

Table of Contents:

Executive Summary: Summarize the proposal and the expected benefits of the research effort.

Proposal: Describe the proposed research effort and the associated technical and management issues keeping in mind that evaluators will be reviewing the proposal consistent with the evaluation criteria. The Technical Volume shall provide detail that substantiates the selection of the technologies proposed, to include benefits of the proposed technology relative to the topic objective. The Technical Volume shall include a clear statement of the technical objectives and the specific approach to be pursued and supporting background experience.

Performance Goals: Describe the overall methodology and how it will meet the program objectives and the specific Call objectives.

Detailed Technical Approach: The Technical Volume shall provide detail that substantiates the selection of the technologies proposed, to include benefits of the proposed technology relative to the Call and/or topic objectives.

Statement of Research Effort and Statement of Work (SOW), Schedule, and Milestones: The Technical Volume shall contain a Statement of Research Effort (objective-based) and Statement of Work (detailed tasks), schedule with milestones. The SOW shall be severable (as described below in Deliverables), self-standing and without any proprietary restrictions, which can be included or attached to the award instrument.

Include a biographical section describing relevant capabilities of key personnel, and a program management section. Applicants shall identify and substantiate the beginning and ending Technology Readiness Levels (TRL). Describe how each task will be performed and identify sub-tasks, if appropriate.

Deliverables: Provide a brief summary of all deliverables proposed (to include any deliverables identified in the Call and/or Request For Proposal), including data, and reports consistent with the objectives of the work, along with suggested frequency of submission. Data rights offered for all data deliverables shall be clearly identified. This section shall be severable (i.e. it will begin on a new page and the following section shall begin on a new page).

Management Plan: Provide a brief summary of the management plan, including an explicit description of what role each participant or team member will play in the project, and their past experience in technical areas related to this proposal.

Facilities: List the location(s) where the work will be performed, and a description of the facilities to be used. Substantiate availability of facilities. Describe any specialized or unique facilities which directly affect the effort.

Government-Furnished Resources: Provide a brief summary of required information, hardware, property, facilities, or data which must be provided by the Government to support the proposed work, if any.

Resumes for Key Personnel: In Appendix A (a stand-alone file), provide resumes and/or curriculum vitae (CVs) for each of the key personnel. Appendix A is not subject to the page count limitation.

Security Requirements: It is anticipated that submissions received under this BAA will be unclassified. However, Calls will identify any additional security requirements. Research efforts selected and funded under this BAA will likely generate technical data that is subject to export control laws and regulations. Applicants who propose performance requiring access to and/or generation of technical data the export of which is restricted by the Arms Export Control Act, 22 U.S. Code §§ 2751-2799aa-2, including the International Traffic in Arms Regulations (“ITAR” at 22 C.F.R. 120-130), and the Export Controls Reform Act (ECRA), 50 U.S. Code §§ 4801-4852, including the Export Administration Regulations (“EAR” at 15 C.F.R. 730-774) must be registered and certified with the Defense Logistics Agency. The Joint Certification Program (JCP) has an online portal for applications to the program. More information may be found at [JCP Home \(dla.mil\)](http://JCP.Home(dla.mil)) or <https://www.dla.mil/Custom-Support/>. The proposal shall include a verifiable Joint Certification number and/or a copy of the Applicant's approved DD Form 2345, Militarily Critical Technical Data Agreement. Calls may include a DD Form 254, Contract Security Classification Specification if classified work is to be performed under the effort.

Assertion of Data Rights: Include a summary of any assertion of Applicant restrictions on Government use of any technical data or computer software that will be developed or delivered under any resultant award. See DFARS 252.227-7017, Identification and Assertion of Use, Release, or Disclosure Restrictions for further information and the Table to utilize and include in the proposal for identification of such data. This includes any assertions to pre-existing results, prototypes, or systems supporting and/or necessary for the use of the research, results, and/or prototype. Any rights asserted in other parts of the proposal that would impact the rights in this section must be cross-referenced. If less than unlimited rights in any data or software to be delivered under the resultant award are asserted, the Applicant must explain how these rights in the data will affect its ability to deliver research data, subsystems, and toolkits for integration. Additionally, the Applicant must explain how the program goals are achievable in light of the proprietary and/or restrictive limitations. If there are no claims of proprietary rights in pre-existing data, this section shall include a statement to that effect. The principal outcome of awards under this BAA is the technical data and computer software to further develop the project for transition into fielded weapons systems. Awardee post-award assertions of limitations on the rights the Government obtains in this technical data and computer software will be considered to have materially affected the Government's funding decision and will not be accepted absent compelling reasons.

For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process as specifically as possible (e.g., by referencing specific sections of the proposal or specific technology or components). For computer software or computer software documentation, identify the software or documentation by specific name or module or item number.

The Applicant shall include copies of negotiated, commercial, and other non-standard licenses that affect any software that will be further developed and/or delivered to the Government. Applicant shall attach to its offer for each listed item copies of all proposed negotiated license(s), Applicant's standard commercial license(s), and any other asserted restrictions other than Government Purpose Rights; Limited Rights; Restricted Rights; rights under prior Government contracts, including Small Business Innovation Research (SBIR) data rights for which the protection period has not expired; or Government's minimum rights.

VOLUME 2: Price/Cost Proposal

The Price/Cost Proposal will consist of 2 separate electronic files. The first file shall consist of a cover page and two parts; Part 1 and Part 2. Part 1 will provide a detailed cost breakdown of all costs by cost element and Part 2 will provide a Cost breakdown by task using the same task numbers in the Statement of Work. If options are applicable,

they shall be separately priced. Technical information included within the Cost Volume will not be evaluated. The second electronic file is Appendix A, Resumes for Key Personnel.

Cover Page: Use of the standard form (SF) 1411 is encouraged. The words “Price/Cost Proposal” shall appear on the cover page in addition to the following information:

- BAA number;
- Call number, if applicable;
- Title of proposal;
- Identity of prime Applicant and complete list of subcontractors, if applicable;
- For Prime and all major subcontractors include the CAGE; UEI and TIN numbers for each entity.
- Technical point of contact (name, address, phone electronic mail address);
- Administrative/business point of contact (name, address, phone, electronic mail address);
- Duration of effort (separately identify the basic effort and any options if applicable) ;
- Prospective applicants shall state the certifications in the System for Award Management (SAM) at www.sam.gov have been completed and shall provide the Certification Validity period; and,
- The signature and title of an authorized representative of the entity submitting the proposal. If multiple organizations are participating, one signature from the principal/leading organization is acceptable.

Part 1: Part 1 shall show total project cost broken out by cost elements (labor hours, labor categories/mix, subcontracts, travel, materials, and any other direct/indirect costs) by Government fiscal year. This information shall also be provided for each Statement of Work (SOW) task. All pricing rates used, and equipment and materials required shall be included. The individual tasks proposed shall be priced separately in order to facilitate selection and potential award of individual parts of the proposed effort. The Applicant shall state whether any Independent Research and Development (IR&D) program is or will be dedicated to this effort, or if IR&D is being pursued to benefit related programs as well. Subcontractor cost proposals, if submitted directly to the Government are due by the stated closing date and time stated in the Call for receipt of proposals. Any cost sharing proposed shall be clearly identified and include the type of cost share (i.e. cash or in-kind). If in-kind contribution is proposed, the Applicant shall provide a discussion of how that cost share was valued. If proposing cost/resource share less than the percentage for which the Government is required by statute or regulations to seek for the proposed funding instrument, rationale shall be provided.

The proposal validity period of 180 days is requested, and the Offeror shall clearly identify the proposed funding instrument requested.

Direct Labor – Individual labor category with associated labor hours and unburdened direct labor rates.

Indirect Costs – Fringe Benefits, Overhead, General and Administrative (G&A) rate(s), Cost of Money (COM) rate(s), etc. (Must show base amount and rate).

Travel – Number of trips, travelers, destinations, durations, etc. (Travel estimate shall include costs for an initial kick-off meeting at the site designated in the individual Call and a final program presentation as part of the reporting on the results of the research effort).

Subcontract/Subrecipient – A cost proposal will be required to be submitted by the subcontractor/subrecipient. Subcontractors’ cost proposals must be similarly structured. All subcontracted work must be appropriately identified as such. If a subcontractor elects to submit an abbreviated proposal to the Applicant, with the detailed proposal submitted directly to the Government, it is the Applicant’s responsibility to ensure that the subcontractor’s proposal is submitted by the stated closing/date and time specified in the Call for receipt of proposals. An Applicant’s proposal must identify principal items/services to be subcontracted, prospective subcontractors, and the basis upon which they were selected (if non-competitive provide justification). Include the type of contractual arrangement contemplated and the rationale for determining the price reasonable.

Materials—Material costs shall be specifically itemized with cost or estimated cost. Where possible, indicate purchasing method, (Competition, engineering estimate, market survey, etc.)

Other Direct Costs (ODC) – ODCs shall be itemized, particularly any proposed items of equipment or facilities. Equipment and facilities generally must be furnished by the contractor/recipient. Justifications must be provided when Government funding for such items is sought.

Indirect Costs – (Overhead, G&A, other) Provide the most recent rates, rate agreements, the period to which the rates apply and whether the rates are provisional or fixed. Include a copy of the rate agreement. If proposing Facilities COM, include the DD Form 1861.

Fee/Profit - If fee/profit are permitted by statute and regulation, include fee percentage.

Part 2: Provide cost breakdown by task. The Price/Cost Proposal shall be consistent with the Applicant's proposed SOW.

Excel File – An unprotected Excel file including total proposed cost buildup and cost formulas shall be submitted.

ATTACH 4 RISK ASSESSMENT

ATTACHMENT 4 The Army Research Risk Assessment Program (ARRP)

1. The ARRP

ARRP is an adaptive risk management security program applied to Army-funded research designed to help protect Army Science and Technology (S&T) by identifying possible vectors of undue foreign influence.

In order to identify and mitigate undue foreign influence as required by federal law and policy, the Army will perform a research risk assessment of each proposal where-in fundamental research is identified and it is selected for consideration for an award. ARRP risk assessments for these subject proposals will be developed for all proposed Covered Individuals, (also referred to as "Senior/Key personnel"). These risk assessments will be based on information disclosed in the Standard Form (SF) 424, any of its accompanying or referenced documents, publicly available information, and information contained in internal Army databases. Nationality or citizenship is not a factor in the risk assessment. While the SF 424 is used in conjunction with a grant or cooperative agreement as the funding instrument, for purposes of this BAA, the offeror shall include a SF 424, Research & Related Senior/Key Person Profile as part of its proposal if the offeror is proposing the project as falling within the definition of fundamental research regardless of funding instrument, including subcontracts and subawards.

ARRP has a risk matrix which identifies risk factors and resulting risk ratings. The matrix generally looks at four factors, or risk areas: participation in foreign talent programs; denied entity list affiliation or association (see <https://www.bis.doc.gov/index.php/the-denied-persons-list> and <https://www.bis.doc.gov/index.php/policy-guidance/lists-of-parties-of-concern/entity-list>); funding sources to include conflict of interest or conflict of commitment, or funding from a strategic competitor; and foreign influence showing a pattern or history of affiliation, association, or collaboration with a foreign institution, person or entity from a U.S. strategic competitor. The matrix can be found at www.arl.army.mil/arrp.

- **Affiliation** is academic, professional, or institutional appointments or positions with a foreign government-connected entity, whether full-time, part-time, or voluntary (including adjunct, visiting, honorary, or lectures/visits) where direct monetary or non-monetary reward is involved.

- **Association** is academic, professional, or institutional appointments or positions with a foreign government-connected entity, whether full-time, part-time, or voluntary (including adjunct, visiting, honorary, or lectures/visits) where no direct monetary or non-monetary reward is involved.

- **Collaboration** is academic, professional, or institutional agreement to jointly work together with a foreign government- connected entity, whether full-time, part-time, or voluntarily, in an official or unofficial capacity. Co-authorship in research endeavors is an example of collaboration.

- **Strategic competitors** are those adversaries identified in the current Annual Threat Assessment report from Director of National Intelligence. The 2023 assessment was published on February 6, 2023 and can be found at <https://www.dni.gov>.

- **Conflict of Interest and Conflict of Commitment** are defined in NSPM-33 and in the CONOP as well as the AFC ARRP Policy memorandum.

- **Covered Individual** are the principal investigators (PIs) and other senior/key personnel seeking or receiving Federal R&D funding. Individuals participating in the process of allocating Federal funding: program officers, peer/merit reviewers, and members of advisory panels and committees; Researchers at Federal agency laboratories and facilities (i.e., intramural researchers, whether or not Federally employed), including government owned, contractor-operated laboratories and facilities; Any other individual who: contributes in a substantive, meaningful way to the scientific development or execution of a research and development project proposed to be carried out with a research and development award from a Federal research agency; is designated as a covered individual by the Federal research agency concerned.

ARRP risk ratings range from LOW to HIGH depending on the amount, type, and timing of foreign associations or affiliations that could constitute a foreign-influenced “Conflict of Interest” or “Conflict of Commitment,” as defined by National Security Presidential Memorandum 33 (NSPM-33).

Once the research risk assessments are performed, the Army risk acceptance authority has several courses of action available for consideration. These courses of action are as follows:

a. Course of Action 1 - The Army risk acceptance authority may accept the risk rating that results from the risk assessment process and proceed with the award. This typically happens with proposals with risk ratings of “LOW” but could also happen with the other risk ratings. In Course of Action 1, the applicant will not be required to do anything related to the risk assessment process or the assigned risk rating.

b. Course of Action 2 - The Army risk acceptance authority may accept the risk rating with some research protection requirements added to the grant or cooperative agreement award. This typically happens with proposals with risk ratings of “MODERATE” but could also happen with the other risk ratings. Also, typically, these added research protection requirements could include, but be limited to the following in the grant or cooperative agreement award:

(1) The University's Security Office shall provide the Principal Investigator and covered individual related to this award training on foreign talent recruitment programs and threat awareness and reporting requirements.

(2) The University shall disclose to the Army Research Laboratory Security Office and Grants Officer all international travel, i.e., all international travel completed as part of any university business, by the Principal Investigator and covered individual related to this award instrument prior to travel.

(3) The University shall report to the Army Research Laboratory Security Office and Grants Officer all inquiries by foreign operatives or suspected foreign operatives into research associated with the award.

(4) The University is encouraged to utilize students without potential conflicts of interest or conflicts of commitment as identified in U.S. National Security Presidential Memorandum (NSPM-33).

Under Course of Action 2, the applicant will be asked to sign the grant or cooperative agreement prior to award, confirming agreement to these added requirements. Should the applicant not agree to these added research protection requirements, the Army risk assessment authority may decide not to award.

c. Course of Action 3 - The Army risk acceptance authority is not willing to accept the risk assigned because of the assessment process. In this case, the applicant will be provided an opportunity to provide a risk mitigation plan. This typically happens with proposals with risk ratings of "HIGH" but could also happen with the other risk ratings. In Course of Action 3, the applicant will be informed of the risk rating assigned during the risk assessment process as well as the block(s) on the matrix where the review resulted in some type of finding that contributed to the assigned risk rating. Should the applicant choose to not submit a risk mitigation plan, the Army risk assessment authority may decide not to award. Should the applicant choose to submit a risk mitigation plan, the Army will review such plan. As a result of this review, the Army risk acceptance authority may then be willing to accept the risk assigned with the mitigation plan and proceed with the award or the Army risk acceptance authority may not be willing to accept the risk and may decide not to award. Further, should the risk mitigation plan include proposal revisions that affect those aspects of the proposal included in the review or selection process under SECTION II.E.2.c, the original proposal evaluation will be reviewed and revised as appropriate based on the proposal revisions.

2. Actions Required by Applicants.

a. By submission of this application and authorized signature on the SF 424 (R&R) Form, the Applicant agrees to comply with the following requirements:

- To certify that each covered individual who is listed on the application has been made aware: (1) of all relevant disclosure requirements, including the requirements of 42 U.S.C. § 6605; and (2) that false representations may be subject to prosecution and liability pursuant to, but not limited to, 18 U.S.C. §§287, 1001, 1031 and 31 U.S.C. §§ 3729-3733 and 3802. See National Science and Technology Council Guidance for Implementing National Security Presidential Memorandum 33 (NSPM-33) on National Security Strategy for United States Government-Supported Research and Development (January 2022), at p. 7 (available at <https://www.whitehouse.gov/wp-content/uploads/2022/01/010422-NSPM-33-Implementation-Guidance.pdf>).

- To establish and maintain an internal process or procedure to address foreign talent programs, conflicts of commitment, conflicts of interest, and research integrity.

- To exercise due diligence to identify Foreign Components or participation by Covered individual in Foreign Government Talent Recruitment Programs and agree to share such information with the Government upon request.

b. With the application, the Applicant must provide a completed "Privacy Act Statement" consent form for each Covered Individual that is also signed by the Applicant as that Individual's Sponsor. The "Privacy Act Statement" form is included at the end of this attachment.

c. During the award period of performance:

- If, at any time, during performance of this award, the Recipient learns that its Covered Individual (including any sub-awardee personnel who receive this designation) are or are believed to be participants in a Foreign Government Talent Program or have Foreign Components with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer, the recipient will notify the Government or Grants Officer within five business days of awareness.

- This disclosure must include specific information as to the personnel involved and the nature of the situation and relationship. The Government will review this information and conduct any necessary fact-finding or discussion with the Recipient. The Government's determination on disclosure may include acceptance, mitigation, or termination of the award.

- Failure of the Recipient to reasonably exercise due diligence to discover or ensure that neither it nor any of its Covered Individuals involved in the subject award are participating in a Foreign Government Talent Program or have a Foreign Component with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer may result in the Government exercising remedies in accordance with federal law and regulation.

- The provisions concerning this disclosure will be included in each award.

d. The Recipient will be required to flow down this provision to all sub awardees who have personnel designated as Covered Individuals as a result of their involvement in the performance of the research.

3. Actions Required by Covered Individuals.

Federal law requires that all current and pending research support, as defined by 42 U.S.C. §6605, must be disclosed at the time of proposal submission, for all covered individuals. The Government may require an updated disclosure during the performance of any research project selected for funding. The Government will require an updated disclosure whenever covered individuals are added or identified as performing under the funded project. See definition of “Covered Individuals” below.

Covered Individuals are also required to sign the “Privacy Act Statement” and provide such signed statement to the applicant for submission with the proposal.

Any decision to accept a proposal for funding under this announcement will include full reliance on the individual’s statements. Failure to report fully and completely all sources of project support and outside positions and affiliations may be considered a material statement within the meaning of the False Claims Act, 31 U.S.C. 3729, and constitute a violation of Federal law.

3. Privacy Act Compliance.

All information collected and developed for the purpose of conducting ARRPP risk assessments will be maintained in accordance with the following authorities:

- Office of Personnel Management (OPM) System of Records Notice (SORN) GOVT-1. This SORN governs information collected from federal grantees for the purpose of conducting a national security investigation or carrying out other lawful statutory, administrative, or investigative purposes of the agency, to the extent the information is relevant and necessary to the requesting agency’s decision.
- Department of the Army (DA) SORN A0381-20b-DAMI (Feb. 10, 2009, 74 F.R. 6596). This SORN applies to information contained in systems used by the Department of the Army to develop ARRPP risk assessments.
- 32 C.F.R. Appendix A to Part 310, Paragraph N: DoD Blanket Routine Uses. Pursuant to this provision, a record from a system of records maintained by a Component may be disclosed as a routine use outside the DoD or the U.S. Government for the purpose of counterintelligence activities authorized by U.S. law or Executive order or for the purpose of enforcing laws that protect the national security of the United States.

5. Definitions

Conflict of Commitment. A situation in which an individual accepts or incurs conflicting obligations between or among multiple employers or other entities. Common conflicts of commitment involve conflicting commitments of time and effort, including obligations to dedicate time in excess of institutional or funding agency policies or commitments. Other types of conflicting obligations, including obligations to improperly share information with, or withhold information from, an employer or funding agency, can also threaten research security and integrity and are an element of a broader concept of conflicts of commitment.

Conflict of Interest. A situation in which an individual, or the individual’s spouse or dependent children, has a financial interest or financial relationship that could directly and significantly affect the design, conduct, reporting, or funding of research.

Covered Individual. An individual who contributes in a substantive, meaningful way to the scientific development or execution of a research and development project proposed to be carried out with a research and development

award from a Federal research agency; and is designated as a covered individual by the Federal research agency concerned. See 42 U.S.C. § 6605, Definitions. (For purposes of this BAA, “covered individuals” are all Covered individual.)

Foreign Associations and Affiliations. Association is defined as collaboration, coordination or interrelation, professionally or personally, with a foreign government-connected entity where no direct monetary or non-monetary reward is involved. Affiliation is defined as collaboration, coordination, or interrelation, professionally or personally, with a foreign government-connected entity where direct monetary or non-monetary reward is involved.

Foreign Component. Performance of any significant scientific element or segment of a program or project outside of the U.S., either by the University or by a researcher employed by a foreign organization, whether or not U.S. government funds are expended. Activities that would meet this definition include, but are not limited to: involvement of human subjects or animals; extensive foreign travel by University research program or project staff for the purpose of data collection, surveying, sampling, and similar activities; collaborations with investigators at a foreign site anticipated to result in co-authorship; use of facilities or instrumentation at a foreign site; receipt of financial support or resources from a foreign entity; or any activity of the University that may have an impact on U.S. foreign policy through involvement in the affairs or environment of a foreign country.

Foreign Government Talent Recruitment Programs. In general, these programs include any foreign-state-sponsored attempt to acquire U.S. scientific-funded research or technology through foreign government-run or funded recruitment programs that target scientists, engineers, academics, researchers, and entrepreneurs of all nationalities working and educated in the U.S. Distinguishing features of a Foreign Government Talent Recruitment Program may include:

- Compensation, either monetary or in-kind, provided by the foreign state to the targeted individual in exchange for the individual transferring their knowledge and expertise to the foreign country. In-kind compensation may include honorific titles, career advancement opportunities, promised future compensation or other types of remuneration or compensation.
- Recruitment, in this context, refers to the foreign-state-sponsor’s active engagement in attracting the targeted individual to join the foreign-sponsored program and transfer their knowledge and expertise to the foreign state. The targeted individual may be employed and located in the U.S. or in the foreign state.
- Contracts for participation in some programs that create conflicts of commitment and/or conflicts of interest for researchers. These contracts include, but are not limited to, requirements to attribute awards, patents, and projects to the foreign institution, even if conducted under U.S. funding, to recruit or train other talent recruitment plan members, circumventing merit-based processes, and to replicate or transfer U.S.-funded work in another country.
- Many, but not all, of these programs aim to incentivize the targeted individual to physically relocate to the foreign state. Of particular concern are those programs that allow for continued employment at U.S. research facilities or receipt of U.S. Government research funding while concurrently receiving compensation from the foreign state.
- Foreign Government Talent Recruitment Programs do **not** include research agreements between the University and a foreign entity, unless that agreement includes provisions that create situations of concern addressed elsewhere in this section; agreements for the provision of goods or services by commercial vendors; or invitations to attend or present at conferences.

Strategic Competitor. A nation, or nation-state, that engages in diplomatic, economic or technological rivalry with the United States where the fundamental strategic interests of the U.S are under threat.

Privacy Act Statement

Application for Federal Assistance

Authority: Government Paperwork Elimination Act (Pub. L. 105-277, 44 U.S.C. 3504); Executive Order 12372, Intergovernmental review of Federal Programs (47 FR 30959); 42 U.S. Code § 6605 – Disclosure of funding sources in applications for Federal research and development awards; Public Law 117-167, CHIPS and Science Act; Public Law 116-92, National Defense Authorization Act for Fiscal Year 2020; 5 U.S.C. 9101, Access to Criminal History for National Security and Other Purposes 5 CFR §1320.8, Agency collection of information Responsibility; 18 U.S.C. § 1001, False Statements, Concealment; E.O. 13478, Amendments to Executive Order 9397 Related to Federal Use of social Security Numbers; NSPM-33, National Security Presidential Memorandum 33 on National Security for United States Research and Development; DoD-D 5240.01, DoD Intelligence Activities; DoD-I 5200.02, Department of Defense Personnel Security Program; Army Regulation 381-10, U.S. Army Intelligence Activities

Purpose: The information collected may be used in processing, investigating, and maintaining records relevant to Federal Assistance awarded by the Department of the Army. Records in these systems will be used to ensure Army sponsored and/or awarded federal grants, assistance, contracts, and/or benefits are awarded to responsible parties, entities, and individuals.

Routine Uses: To contractors, grantees, experts, consultants, students, and others performing or working on a contract, service, grant, cooperative agreement, or other assignment for the Federal Government when necessary to accomplish an agency function.

To the appropriate Federal, State, local, territorial, tribal, foreign, or international law enforcement authority or other appropriate entity where a record, either alone or in conjunction with other information, indicates a violation or potential violation of law, whether criminal, civil, or regulatory in nature.

DoD Blanket Routine Use (<http://dpclld.defense.gov/privacy>)

Effect of not providing information: Providing information to the Department of the Army is voluntary. However, 42 U.S. Code § 6605, which imposes certain disclosure requirements in connection with Federal research and development awards, provides various enforcement mechanisms for non-compliance. One such mechanism, which the Department of the Army intends to pursue here, is rejection of such applications.

Proposal Title (or grants.gov number): _____

Acknowledgment of consent:

Covered Individual Signature

Covered Individual Name

Institution's Authorized Representative Signature

Institution's Authorized Representative Name

Institution Name:

